



Report on Adjustments made to Kwara State Innovation & Information Technology Agency Law Draft by Ministry of Justice

Wednesday December 28, 2022

On proper assessment of the draft of the KWIITA draft law returned by the Kwara State Ministry of Justice, it has been noted that several changes were made, some minor and some major. A list of the noticed edits, their importance and recommendations are below.

I would like to mention that the experience with Ministry shows an urgent need for digitization or at least following certain word processing standards with the use of soft copy documents, instead of hard copies. It has taken weeks to read and review versions when Microsoft Word can easily allow tracking of changes on the same document.

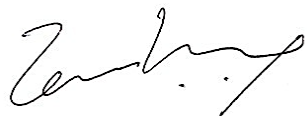
CLAUSE		CHANGE MADE	IMPORTANCE	RECOMMENDATION
Original Version	Justice Version			
2 – Objectives of the Agency	16 – Objectives of the Agency	Moved to new section (Part III)	Medium	This change is unnecessary and should be returned to Part I.
3 – Functions and Powers of the Agency	17 – Functions and Powers of the Agency	Moved to new section (Part III)	Medium	This change is unnecessary and should be returned to Part I.
4 - Establishment and Composition of the Governing Board	2 - Establishment and Composition of the Governing Board	Wrongly placed in Part I in Arrangement of Sections when in actual contents it is in Part II	High	Move Clause 2 back to Part II (Governing Board of the Agency)
NA		Part III is duplicated	High	Correct to Part IV and correct subsequent sections
NA		Part I is titled ESTABLISHMENT AND INCORPORATION OF THE AGENCY while the contents speak to both the Agency and Board	Medium	Part I should cover the Agency while Part II should cover the Board

4 – Establishment and composition of the Governing Board	2 – Establishment and composition of the Governing Board	“There is established for the Agency a Governing Board” changed to “There is established the Kwara State Innovation and Information Technology Board” as if it’s a new entity on its own like the Kwara State Pilgrims Board. It is not a new entity and is a Governing Board to the Kwara State Innovation and Information Technology Agency.	High	This change should be reverted
18 - Director General of the Agency	18 - Director General of the Agency	“The Director-General shall be paid such remuneration and allowances as may be determined by the Governor”	High	This should follow a set standard like RMAFC for the Director-General of a State Agency, and this should be protected to prevent tampering by future administrations.
22 – Legal officer of the Agency	22 – Legal officer of the Agency	The Agency shall have a legal officer seconded from the Ministry of Justice and must be a State Counsel not below grade level 15	High	For purposes of technology policy drafting, legal agreements between the Agency and tech companies, startups and investors, the Agency should have a young and qualified legal officer with relevant experience hired on merit and not on secondment from the Civil

				Service. However, when the position opens, staff of the Ministry of Justice are free to apply. The Agency can have an Administrative Secretary seconded from the Civil Service, but not a Legal Officer.
23 – Staff Regulations	23 – Staff Regulations	The staff of the Agency shall be public servants in the service of Kwara State.	High	The staff of the Agency should be public servants, and not civil servants, as the Agency requires specialized talent in the competitive IT industry. In order to attract and retain talent as specified in Clause 18, the staff (totaling less than 20) should be public servants on a different salary scale.
Part IV - Establishment of the Kwara State Innovation & Technology Fund	Part IV - Establishment of the Kwara State Innovation & Technology Fund	Part IV completely collapsed into Part VI – Financial Provisions	High	Part IV is a key feature and pillar of this bill and should have its own section apart from Part VI (Financial Provisions), as drafted from the National Information Technology Development Fund in Part IV of the National Information Technology Development Agency (NITDA) Act 2007 . The Agency is to be a state version of NITDA and the Fund is not limited to the Agency alone but

				to serve the entire tech ecosystem in the State via government and private sector CSR contributions e.g. IEDPU ICT Hub. Similar to the Kwara State Education Trust Fund, it is different from the Accounts of the Agency and should not be combined with it.
28 - Accounts and Reports of the Fund		Completely removed	High	This is key and was drafted from the National Information Technology Development Fund in Part IV of the National Information Technology Development Agency (NITDA) Act 2007 .
29 – Offences		Completely removed	Medium	This was drafted from the National Information Technology Development Fund in Part IV of the National Information Technology Development Agency (NITDA) Act 2007 as a way to enforce statutory contributions to the fund. We do not have any statutory contributions to the Fund yet but these can be amended in the future.

Additional Recommended Edits				
5 – Powers of the Board	3 – Powers of the Board		High	In (f) it should specify that the Board can establish a Governing Council for State-owned Innovation Hubs. (The Governor also has this Power)
4 - Establishment and Composition of the Governing Board	2 - Establishment and Composition of the Governing Board	It was realized that the total number of board members is 8, which can form a tie in a vote.	High	Add one more member to be appointed by the Governor.



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